

STATE OF NEW YORK

7349--B

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. MORINELLO -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the town of Niagara to alienate and discontinue the use of certain parklands and to convey such parklands to Rajendra Sharma

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the town of Niagara,
2 county of Niagara, is hereby authorized, acting by and through its
3 governing body, and upon such terms and conditions as determined by such
4 governing body, to discontinue the use as parkland and alienate the
5 lands described in section three of this act, and to sell and convey
6 property interests in such lands at fair market value to Rajendra Sharma
7 for the purpose of adding sufficient additional land to adjacent land
8 owned by Rajendra Sharma to construct a residence.

9 § 2. The authorization contained in section one of this act shall only
10 be effective on the condition that the town of Niagara dedicate an
11 amount equal to or greater than the fair market value of the parklands
12 being alienated pursuant to section one of this act towards the acqui-
13 sition of new parklands and/or capital improvements to existing park and
14 recreational facilities.

15 § 3. The parkland authorized by section one of this act to be discon-
16 tinued as parkland is described as follows:

17 ALL THAT TRACT OR PARCEL OF LAND situate in the Town of Niagara, Coun-
18 ty of Niagara and State of New York, being Part of Lot 11, Township 13,
19 Range 9 of the Holland Land Company's Survey, containing .15 acres more
20 or less, and further described as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10985-04-5

BEGINNING at a point on the north line of Joanne Circle North, formerly Joann Circle, (a 60.0 foot right of way) which point is the southeasterly corner of Sublot 35 as shown on a map of Greenwood Acres, Section No. 2 Part of Lot 11, Township 13, Range 9, Town and County of Niagara, State of New York, made by Henry R. Feldman and Associates, Civil Engineers and Land Surveyors, dated October 17, 1968 and filed in Niagara County Clerk's Office November 8, 1968 in Book 44 of Microfilmed Maps at pages 4287 and 4288; thence easterly along the north line of Joanne Circle North, a distance of 67.0 feet to a point; thence northerly, at right angles to the north line of Joanne Circle North, a distance of 97.31 feet to a point; thence westerly and parallel to the north line of Joanne Circle North, a distance of 67.0 feet to a point which is the northeast corner of said Sublot 35; thence southerly along the easterly line of said Sublot 35, a distance of 97.31 feet to the north line of Joanne Circle North at the point or place of beginning.

§ 4. In the event that the town of Niagara received any funding support or assistance from the federal government for the purchase, maintenance, or improvement of the parklands set forth in section three of this act, the discontinuance and alienation of such parklands authorized by the provisions of this act shall not occur until the town of Niagara has complied with any federal requirements pertaining to the alienation or conversion of parklands, including satisfying the secretary of the interior that the alienation or conversion complies with all conditions which the secretary of the interior deems necessary to assure the substitution of other lands shall be equivalent in fair market value and usefulness to the lands being alienated or converted.

§ 5. This act shall take effect immediately.